

STATE OF NEW YORK

5494--A

2025-2026 Regular Sessions

IN SENATE

February 21, 2025

Introduced by Sen. BYNOE -- read twice and ordered printed, and when printed to be committed to the Committee on Libraries -- recommitted to the Committee on Libraries in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to state aid for library social work services; and providing for the repeal of such provisions upon the expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative intent. It is the intent of this legislature to
2 place social workers in libraries to assist people who need access to
3 greater resources and social services assistance than what is currently
4 available at a library without a social worker. Libraries are friendly,
5 hospitable, and restful public spaces where people from a wide variety
6 of backgrounds and all walks of life gather to learn, connect with
7 others, and rest. Libraries provide an essential public good by connect-
8 ing communities with opportunities to upskill, seek education, and learn
9 about resources to support basic needs.
10 People view libraries as safe spaces for rest and learning, where they
11 can receive vital services for free. Libraries offer respite for all
12 community members, including the most vulnerable in our communities.
13 This includes those who are unhoused, those who cannot afford to cool
14 their homes during the summer, and those without broadband internet
15 access. As such, libraries are often the first to identify emerging
16 community issues as residents seek guidance and help from the library.
17 Many library patrons have needs that cannot be met by existing library
18 resources. Many needs extend beyond the scope of work of librarians, who
19 despite their best intentions to serve, are not trained nor equipped to
20 meet the wide range of social services challenges being faced by
21 patrons. These needs include housing assistance, mental health

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 services, and help accessing other social services. The co-location of
2 social workers in libraries connects people who need assistance with the
3 workers who can help them. Placing social workers in libraries will
4 increase access to social services for those who need it the most and
5 will ensure better community health and wellbeing.

6 Furthermore, by creating dedicated funding for library social workers,
7 libraries can serve the social services needs of the community without
8 having to pull funding from other vital services such as buying books,
9 developing programming, and maintaining the upkeep of their library
10 buildings.

11 § 2. The education law is amended by adding a new section 273-b to
12 read as follows:

13 § 273-b. State aid awards for library social work services. 1. Subject
14 to appropriation, the commissioner shall establish a pilot program for
15 the purpose of placing social workers in public libraries, association
16 libraries and public library systems located in economically disadvan-
17 tagged communities to assist people who need access to greater resources
18 and social services. Such pilot program shall be implemented for a peri-
19 od of three years.

20 2. (a) Upon approval by the commissioner, grants shall be made to
21 public libraries, association libraries and public library systems that
22 are located in or contain an economically disadvantaged community to be
23 used for:

24 (i) the payment of social workers or social worker supervisors with
25 responsibilities and duties as described in subdivision five of this
26 section, or;

27 (ii) the payment of local departments of social services or not-for-
28 profit organizations which contract with such public libraries, associ-
29 ation libraries, or public library systems to provide social workers or
30 social worker supervisors with responsibilities and duties as described
31 in subdivision five of this section.

32 (b) Such grants shall be awarded to public libraries, association
33 libraries or public library systems within the limits of funds appropri-
34 ated therefore, through a competitive process.

35 (c) Awards shall be provided for expenses incurred pursuant to para-
36 graph (a) of this subdivision for the purpose of providing social work
37 services pursuant to subdivision five of this section during the period
38 commencing July first and ending June thirtieth for up to three years.

39 3. (a) Each application that requests a social worker or requests to
40 contract with a local department of social services or not-for-profit
41 organization which can provide such social worker or that requests a
42 social worker supervisor or requests to contract with a local department
43 of social services or not-for-profit organization which can provide such
44 social worker supervisor shall include, but not be limited to:

45 (i) a demonstration that resources are or shall be available to
46 provide for maximum utilization of the grant if approved;

47 (ii) a demonstration that such grant would enhance community building
48 and expand access to social services as a consequence of approval;

49 (iii) documentation demonstrating how the award will address the
50 service needs of one or more economically disadvantaged communities.
51 Such documentation may demonstrate need, including, but not limited to,
52 poverty rates, concentrations of English language learners, low high
53 school graduation rates, limited fiscal capacity or other relevant
54 factors; and

55 (iv) such other information as may be required by the commissioner.

1 (b) No single public library or association library building shall be
2 the subject of more than one approved application pursuant to this
3 subdivision at one time.

4 (c) Applications that request a social worker or request to contract
5 with a local department of social services or not-for-profit organiza-
6 tion which can provide such social worker shall be submitted to the
7 commissioner by a public library system on behalf of a public library or
8 association library for the commissioner's review and approval.

9 (d) Applications that request a social worker supervisor or request to
10 contract with a local department of social services or not-for-profit
11 organization which can provide such social worker supervisor shall be
12 submitted to the commissioner by a public library, association library,
13 or public library system for the commissioner's review and approval.

14 4. The commissioner shall determine award amounts per library, associ-
15 ation library and library system for awards that are applied for and
16 approved.

17 5. (a) Public libraries, association libraries and public library
18 systems awarded grants pursuant to this section shall ensure that social
19 workers operating under such award shall perform social work services
20 for members of the public who attend such public library, association
21 library and public library systems. Social work services shall be
22 defined by the commissioner in accordance with article one hundred
23 fifty-four of this chapter.

24 (b) Public libraries, association libraries and public library systems
25 which receive grant fund awards shall ensure that social worker supervi-
26 sors operating under such grant awards shall oversee every social worker
27 in the jurisdiction of the public library system through the grant
28 program.

29 6. Any funds made available pursuant to this section which by April
30 first of each succeeding fiscal year are declined by such public
31 libraries, association libraries or public library systems for any
32 reason, or which cannot otherwise be used by such public libraries,
33 association libraries or public library systems for any reason, shall be
34 made available by the commissioner to other public libraries, associ-
35 ation libraries and public library systems that are located in or
36 contain an economically disadvantaged community.

37 7. The commissioner shall, in consultation with the president of the
38 state civil service commission, if necessary, adopt rules and regu-
39 lations as are necessary to carry out the purposes and provisions of
40 this section.

41 8. The commissioner shall submit to the temporary president of the
42 senate and the speaker of the assembly an annual report describing those
43 public libraries, association libraries and public library systems that
44 have received state funding and the communities to be served by those
45 awards. Such annual report shall include the effectiveness of each
46 approved award, the number of persons assisted by an award's social work
47 services, the type, scope, and practices of such services offered by
48 each approved award and recommendations for the expansion of the social
49 work services program to all public libraries, association libraries and
50 public library systems in the state, including specific actionable
51 items. The commissioner shall require all awardees to submit to the
52 department such information necessary for the effectuation of such annu-
53 al report.

54 § 3. This act shall take effect on the ninetieth day after it shall
55 have become a law and shall expire and be deemed repealed three years
56 after such date.